

PRIVACY POLICY — NEXERGY AI

Last Updated: June 2026

OPTINEX S.A.S. (hereinafter, "Optinex", "we", "us", "our", or "Nexergy Labs"), as a global provider of operational intelligence solutions and AI agent orchestration infrastructure, maintains an unwavering commitment to protecting the privacy and data of its users. This Privacy Policy (hereinafter, the "Policy") details how we collect, use, disclose, store, and safeguard personal and infrastructure information when you access our website nexergy.ai, utilize the Nexergy AI platform, or interact with our industrial services.

1. SCOPE AND USER COVENANT

By accessing our Site, contacting our engineering teams, or utilizing Nexergy AI services, you become a platform user ("you", "user") and acknowledge, understand, and accept the current version of this binding Privacy Policy. This Policy regulates data processing from end to end, aligning strictly with **SOC 2 Type II** security certifications and the **ISO 42001** artificial intelligence governance standard.

2. DATA WE COLLECT AND INGESTION METHODS

To ensure proper optimization of industrial assets (such as refineries or solar plants) and to guarantee Digital Twin stability, we collect the following categories of information:

2.1. Infrastructure and Connector Information

- **Credentials and Access Tokens:** Secure encrypted authentication keys (OAuth) required to link repositories, external databases, or industrial telemetry data streams.
- **Storage Configuration Data:** Technical integration details related to your data environments configured for **Cloudflare D1 + R2 Ready** architecture.

2.2. Operational and Industrial Data (Telemetry Metrics)

- Performance variables, electrical inverter logs, Modbus/API device telemetry, and analytical data streams processed by the automated agent networks within the Skill Layer to transition critical asset management from reactive to preventive performance.

2.3. Profile Identification Information

- Names, corporate email addresses, billing data, and technical support or business operations interaction records.

3. HOW WE USE YOUR INFORMATION

Optinex processes collected data under strict legal groundings for the following primary purposes:

- 1. **Enterprise Solutions Orchestrator Operation:** Providing, maintaining, and optimizing autonomous industrial agent automation flows inside your designated Workspace.
- 2. **Traceability and Explainability:** Guaranteeing transparent operations through full audit trails verified via real-time synchronized blockchain mechanisms.
- 3. **Infrastructure Security:** Detecting, preventing, and mitigating industrial cybersecurity incidents, unauthorized access, or critical system failures across integrated components.
- 4. **Regulatory Compliance:** Complying with international security audits, algorithmic governance, and global data privacy frameworks applicable to industrial cloud environments.

4. STORAGE, DATA RESIDENCY, AND SECURITY MEASURES (SOC 2 & ISO 42001)

4.1. Encryption and Network Isolation

All Customer Data is encrypted end-to-end, both in transit (TLS 1.3) and at rest (256-bit AES). Storage infrastructure runs under highly isolated network environments deployed on Cloudflare D1 and R2 technologies, preventing leakages or cross-contamination between enterprise clients.

4.2. Immutable Blockchain Audits

To mitigate log alteration risks, all autonomous system decisions executed by the AI framework are immutably written via a secure synchronization with blockchain networks, maintaining a clear timeline for regulatory audits.

Privacy Dimension	Applied Standard	Optinex SAS Corporate Guarantee
Organizational Security	SOC 2 Type II	Continuous audit and review of logical and physical access controls over system databases.
AI Data Governance	ISO 42001	Secure data processing, complete algorithmic explainability, and mitigation of operational biases or risks.
Log Integrity	Blockchain Verified	Physical impossibility of modifying or deleting system audit logs and history trails.

5. INTERNATIONAL DATA TRANSFERS

Because Nexergy Labs operates a globally distributed cloud architecture, data may be transferred to and processed in data centers located outside your residential jurisdiction.

Optinex guarantees that such transfers are conducted under robust data transfer agreements and standard contractual clauses, ensuring your security benchmark is never compromised.

6. DATA SUBJECT RIGHTS (ACCESS, RECTIFICATION, AND DELETION)

As the data owner, you retain absolute control over your personal and operational metadata. You may exercise the following rights at any time by reaching out to our compliance desk:

- **Right to Access:** Request a detailed report regarding which personal datasets and infrastructure metrics are being processed across our cloud systems.
- **Right to Rectification:** Instantly update or correct any inaccuracies or outdated profiles within your Workspace profile.
- **Right to Deletion (Erasure):** Request permanent removal of your datasets from the platform, provided no legal, industrial, or regulatory storage retention mandates bind Optinex S.A.S. to hold those records.

7. PRIVACY AND COMPLIANCE CONTACT

For legal inquiries, policy clarifications, or to exercise your data privacy rights, please contact our Data Compliance Officer via the following institutional channels:

- **Corporate Name:** OPTINEX S.A.S. (Nexergy Labs)
- **Contact Email:** contacto@nexergy.ar
- **Main Website:** www.nexergy.ar